

SENATE No. 817

The Commonwealth of Massachusetts

PRESENTED BY:

Jacob R. Oliveira

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to ensure access to epinephrine for minors.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>4/23/2025</i>

SENATE No. 817

By Mr. Oliveira, a petition (accompanied by bill, Senate, No. 817) of Jacob R. Oliveira for legislation to ensure access to epinephrine for minors. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 700 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ensure access to epinephrine for minors.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by inserting after section 17Q the following section:-

3 Section 17R. (a) Any coverage offered by the commission to an active or retired
4 employee of the commonwealth insured under the group insurance commission shall provide
5 coverage at no cost for medically necessary epinephrine injectors for individuals under 18 years
6 of age for the appropriate weight-based dosage of epinephrine injectors.

7 (b) For purposes of this section, the term “epinephrine injector” shall mean an auto-
8 injector approved by the United States Food and Drug Administration for the administration of
9 epinephrine and a pre-filled syringe approved by the United States Food and Drug

Administration and used for the administration of epinephrine that contains a pre-measured dose of epinephrine that is equivalent to the dosages used in an auto-injector.

(c) Coverage for epinephrine auto-injector 2-packs, under this section, shall not be subject to any deductible, co-insurance, or co-payment that exceeds \$60 per supply, regardless of the amount or type of epinephrine needed to fill an insured person's prescription for those 18 years of age and older.

SECTION 2. (a) Chapter 118E of the General Laws is hereby amended by inserting after section 10L the following section:-

Section 10M. The division and its contracted health insurers, health plans, health maintenance organizations, behavioral health management firms and third-party administrators under contract to a Medicaid managed care organization or primary care clinician plan shall provide coverage at no cost for medically necessary epinephrine injectors for individuals under 18 years of age for the appropriate weight-based dosage of epinephrine injectors.

(b) For purposes of this section, the term "epinephrine injector" shall mean an auto-injector approved by the United States Food and Drug Administration for the administration of epinephrine and a pre-filled syringe approved by the United States Food and Drug Administration and used for the administration of epinephrine that contains a pre-measured dose of epinephrine that is equivalent to the dosages used in an auto-injector.

(c) Coverage for epinephrine auto-injector 2-packs, under this section, shall not be subject to any deductible, co-insurance, or co-payment that exceeds \$60 per supply, regardless of the amount or type of epinephrine needed to fill an insured person's prescription for those 18 years of age and older.

SECTION 3. (a) Chapter 175 of the General Laws is hereby amended by inserting after section 47KK the following section:-

Section 47LL. Any individual policy of accident or sickness insurance issued pursuant to this chapter shall provide coverage at no cost for medically necessary epinephrine injectors for individuals under 18 years of age for the appropriate weight-based dosage of epinephrine injectors.

(b) For purposes of this section, the term “epinephrine injector” shall mean an auto-injector approved by the United States Food and Drug Administration for the administration of epinephrine and a pre-filled syringe approved by the United States Food and Drug Administration and used for the administration of epinephrine that contains a pre-measured dose of epinephrine that is equivalent to the dosages used in an auto-injector.

(c) Coverage for epinephrine auto-injector 2-packs, under this section, shall not be subject to any deductible, co-insurance, or co-payment that exceeds \$60 per supply, regardless of the amount or type of epinephrine needed to fill an insured person’s prescription for those 18 years of age and older.

SECTION 4. (a) Chapter 176A of the General Laws is hereby amended by inserting after section 8MM the following section:-

Section 8NN. Any contract between a subscriber and the corporation under an individual group or hospital service plan that is delivered, issued or renewed within the commonwealth shall provide coverage at no cost for medically necessary epinephrine injectors for individuals under 18 years of age for the appropriate weight-based dosage of epinephrine injectors.

(b) For purposes of this section, the term “epinephrine injector” shall mean an auto-injector approved by the United States Food and Drug Administration for the administration of epinephrine and a pre-filled syringe approved by the United States Food and Drug Administration and used for the administration of epinephrine that contains a pre-measured dose of epinephrine that is equivalent to the dosages used in an auto-injector.

(c) Coverage for epinephrine auto-injector 2-packs, under this section, shall not be subject to any deductible, co-insurance, or co-payment that exceeds \$60 per supply, regardless of the amount or type of epinephrine needed to fill an insured person’s prescription for those 18 years of age and older.

SECTION 5. (a) Chapter 176B of the General Laws is hereby amended by inserting after section 4MM the following section:-

Section 4NN. (a) Any subscription certificate under an individual or group medical service agreement delivered, issued or renewed within the commonwealth shall provide coverage at no cost for medically necessary epinephrine injectors for individuals under 18 years of age for the appropriate weight-based dosage of epinephrine injectors.

(b) For purposes of this section, the term “epinephrine injector” shall mean an auto-injector approved by the United States Food and Drug Administration for the administration of epinephrine and a pre-filled syringe approved by the United States Food and Drug Administration and used for the administration of epinephrine that contains a pre-measured dose of epinephrine that is equivalent to the dosages used in an auto-injector.

(c) Coverage for epinephrine auto-injector 2-packs, under this section, shall not be subject to any deductible, co-insurance, or co-payment that exceeds \$60 per supply, regardless of

the amount or type of epinephrine needed to fill an insured person’s prescription for those 18 years of age and older.

SECTION 6. (a) Chapter 176G of the General Laws is hereby amended by inserting after section 4EE the following section:-

Section 4FF. Any individual or group health maintenance contract shall provide coverage at no cost for medically necessary epinephrine injectors for individuals under 18 years of age for the appropriate weight-based dosage of epinephrine injectors.

(b) For purposes of this section, the term “epinephrine injector” shall mean an auto-injector approved by the United States Food and Drug Administration for the administration of epinephrine and a pre-filled syringe approved by the United States Food and Drug Administration and used for the administration of epinephrine that contains a pre-measured dose of epinephrine that is equivalent to the dosages used in an auto-injector.

(c) Coverage for epinephrine auto-injector 2-packs, under this section, shall not be subject to any deductible, co-insurance, or co-payment that exceeds \$60 per supply, regardless of the amount or type of epinephrine needed to fill an insured person’s prescription for those 18 years of age and older.

SECTION 7. (a) There shall be a commission within the executive office of health and human services for the purpose of studying and making recommendations relative to the manufacturing and pricing of dupilumab, omalizumab, and allergy immunotherapy shots, specifically the creation of generic versions.

95 (b) The commission shall consist of members from the secretary of health and human
96 services, department of public health, center for health information and analysis, and the division
97 of insurance.

98 (c) Members of the commission shall be appointed within 30 days of this act being
99 effective. The commission shall meet not fewer than 6 times per calendar year.

100 (d) The commission shall submit an annual report by December 31 to the governor, the
101 clerks of the house of representatives and the senate, and the joint committee on consumer
102 protection and professional licensure. The report will be a public record.